



August x, 2013

Donna Griebel, MD, Director
Division of Gastroenterology and Inborn Errors Products
Office of Drug Evaluation III
Center for Drug Evaluation and Research
Food and Drug Administration
Central Document Room
5901-B Ammendale Drive
Beltsville, MD 20705

Type C Meeting Request

Re: IND 75,228/S-037 Dronabinol Oral Solution

Dear Dr. Griebel:

Reference is made to the e-mail communications dated August 7 and 8, 2013 between Mary Chung, FDA Regulatory Health Project Manager, and Willene Brondum, Insys Therapeutics Inc. (Insys), indicating that clinical human abuse potential study data was mandatory in order for the FDA to accept for filing Insys' proposed New Drug Application for Dronabinol Oral Solution.

Further reference is made to the Protocol Amendment submitted to the IND as S-036 dated August 12, 2013 requesting review comments from the Controlled Substances Staff for Insys protocol INS-13-017 entitled "A Single-Dose, Double-Blind, Double-Dummy, Randomized, Placebo- and Active-Controlled Crossover Study to Evaluate the Abuse Potential of Dronabinol Oral Solution in Recreational Cannabinoid Users."

The following information is hereby provided in accordance with FDA Guidance for Industry: Formal Meetings Between the FDA and Sponsors or Applicants, May 2009:

1. Product name and application number

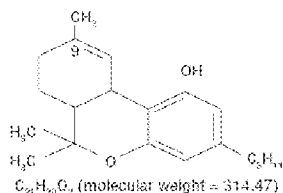
Dronabinol Oral Solution 5 mg

IND 75,228

444 South Ellis Street, Chandler, AZ 85224 / phone: 602.910.2617 / fax: 602.910.2627 / www.insysrx.com

2. *Chemical name and structure*

(6aR-trans)-6a,7,8,10-tetrahydro-6,6,9-trimethyl-3-pentyl-6H-dibenzo[b,d]pyran-1-ol.



3. *Indication*

Dronabinol Oral Solution is an orally active cannabinoid which, like other cannabinoids, has complex effects on the central nervous system (CNS) including central sympathomimetic activity indicated for the treatment of nausea and vomiting associated with cancer chemotherapy in patients who have failed to respond adequately to conventional antiemetic treatments and anorexia associated with weight loss in patients with AIDS.

4. *The type of meeting being requested*

Type C meeting

5. *A brief statement of the purpose of the meeting*

Insys would like to discuss all currently available data pertaining to Dronabinol Oral Solutions' abuse potential relative to Marinol Capsules as well as our proposed strategy for filing the NDA.

6. *A list of the specific objectives/outcomes expected from the meeting*

Insys hopes to confirm the Agency's acceptance parameters for abuse potential data to support placement of the drug product on the DEA's List of Schedule III drugs.

Additionally, we seek concurrence from the Division on our proposed NDA filing strategy.

7. *A preliminary proposed agenda, including estimated amounts of time needed for each agenda item and designated speaker(s)*

<u>TOPIC</u>	<u>DURATION</u>
Introduction	5 minutes
Division responsible for Review and Communication	5 minutes
Discussion regarding <i>in vitro</i> abuse potential data and Eight Factor Analysis	20 minutes
Discussion regarding NDA filing strategy	30 minutes

8. *A draft list of specific questions, grouped by discipline*

Abuse Potential

Insys acknowledges that Dronabinol Oral Solution is currently classified as a Schedule I drug under the Controlled Substances Act (CSA) and that upon FDA approval of the NDA, the drug product will be placed by DEA into a different schedule of the CSA based on the characterization of the formulation's abuse potential relative to Marinol. We agree that the ability to schedule a product is critical to product labeling.

In order to substantiate the abuse potential of the Insys product as compared to Marinol, Insys evaluated the physical properties, potential tampering, and altered uses of the to-be-marketed Dronabinol Oral Solution including smoking and intravenous injection using Marinol as a positive control.

Additionally, Insys conducted an Eight Factor Analysis of the abuse potential for the proposed Dronabinol Oral Solution formulation as supplementary information for the Agency's consideration.

In response to the FDA e-mail communication received from Mary Chung dated August 8, 2013, Insys plans to conduct and subsequently submit a clinical human abuse potential study to confirm the abuse potential/liability of Dronabinol Oral Solution.

Insys respectfully disagrees that the absence of clinical abuse study data in the initial sequence of the NDA renders the application incomplete for review. According to the regulations, the NDA is considered sufficiently complete to warrant substantive review under the following provisions:

- The NDA contains a description and analysis of studies related to the abuse of the drug, including a proposal for scheduling under the Controlled Substances Act in accordance with 21 CFR 314.50(d)(5)(vii).

- Insys commits in the NDA to provide the final clinical abuse potential study report to the pending NDA no later than three months prior to the application's anticipated PDUFA date for consideration during the product's labeling review.
- There are no significant deficiencies in the NDA in accordance with 21 CFR 314.101.

Question: Insys seeks the Agency's concurrence that the NDA would not be refused for filing based on the lack of the clinical abuse potential study data. Does the Agency agree?

9. *Attendees:*

Insys Therapeutics, Inc.
Michael L. Babich, President and CEO
John Kapoor, Ph.D., Chairman of the Board
Larry Dillaha, M.D., Chief Medical Officer
Neha Parikh, Senior Director, Scientific Affairs
Willy Brondum, Senior Manager, Regulatory Affairs

10. *A list of Agency staff requested by the Sponsor to participate in the proposed meeting:*

Insys requests that representatives from all appropriate divisions and disciplines including the Controlled Substances Staff participate in the meeting.

11. *Suggested dates and times for the meeting*

Insys respectfully requests the meeting be scheduled no later than the last two weeks of October.

Insys commits to providing the meeting briefing package at least one month in advance of the confirmed date for the meeting. Please note the meeting briefing package shall contain the final report for all *in vitro* abuse liability studies conducted, the Eight Factor Analysis, and the timeline for completion of the clinical human abuse potential study.

12. *The format of the meeting*

Insys requests that the proposed meeting with FDA be a ~~teleconference/face-to-face~~

Comment [W81]: Please advise which type of meeting Insys would prefer.

If you require any additional information regarding this submission, please do not hesitate to contact me at 602-910-2617 Extension 9022, by fax at 602-910-2627 or e-mail wbrondum@insysrx.com.

Sincerely,

Willene M. Brondum
Senior Manager, Regulatory Affairs

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Comments Text:

Author Willene Brondum

Please advise which type of meeting Insys would prefer.